

24STCV11525 24STCV11525

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-08-11

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Case Number: 24STCV11525 Hearing Date: August 11, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 08/11/2026

CASE NUMBER: 24STCV11525

CASE NAME: JEROME GARDNER, AN INDIVIDUAL vs SOCAL AMERICAN HOME CENTER,...

MOVING PARTY: Plaintiff Jerome Gardner

OPPOSING PARTY: There are two Defendants in this action – Socal American Home Center which ECourt says defaulted, but they have filed a cross-complaint; and Jennier Goodie. No party filed an Opposition.

PROCEEDING: Motion for reconsideration

RULING

SUMMARY: Plaintiff Jerome

Gardner's Motion for Reconsideration is denied.

Background

On May

8, 2024, plaintiff Jerome Gardner ("Plaintiff") filed a Complaint against defendants SoCal Home Center, Inc. ("SHC") and Jennifer Goodie ("Goodie"), alleging two causes of action for (1) Breach of Contract against SHC and Goodie; and (2) Mechanic's Lien against Goodie.

Plaintiff

alleged that on or about April 3, 2023, he entered into a part written, part oral agreement with Defendants to furnish labor, services, equipment, and materials for a work of improvement to the real property known as 4055 Brighton Avenue, Los Angeles, CA 90047 (the "Property") for a contract price of \$55,000.00 plus additional sums to be determined; Plaintiff has performed all terms and conditions to be performed on his part under the contract; and Defendants failed to pay and refuse to pay Plaintiff.

On

August 12, 2024, SHC filed a Cross-Complaint against Plaintiff, and Eco Construction Management, Inc. dba Jerome's OCL Home Improvement, Inc. ("Eco Construction"), alleging three causes of action for (1) Misappropriation of Trade Name and Likeness; (2) Intentional Interference with Prospective Economic Advantage; and (3) Unfair Competition (Bus. & Proc. Code § 17200).

Plaintiff

filed a Fourth Amended Complaint ("4AC") on November 10, 2025, alleging two causes of action for (1) Quantum Meruit against SoCal and Goodie and (2) Mechanic's Lien Foreclosure against Goodie.

The

Court held a hearing on Goodie's Demurrer to on May 7, 2026. The Court found that the failure of Plaintiff to include pertinent previous allegations triggered the sham pleading doctrine. The Court sustained Goodie's Demurrer without leave to amend and ordered Goodie dismissed from this action.

On May

13, 2026, judgment in the action was entered as to Goodie. Goodie was dismissed from the action with prejudice.

On May

15, 2026, Plaintiff filed this Motion for Reconsideration. No Opposition has been filed.

LEGAL

STANDARD

Section 1008(a) of the Code of Civil Procedure provides: 2222

When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

A court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon "new or different facts, circumstances or law." (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1499.) Motions for reconsideration are restricted to circumstances where a party offers the Court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (Id.)

Moreover, there is a strict requirement of diligence, which means that the moving party must present a satisfactory explanation for failing to provide the evidence or different facts earlier. (Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 690.) The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at trial. (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212-213; Mink v. Superior Court (1992) 2 Cal.App.4th 1338 ["[T]he party seeking reconsideration must provide not only new evidence but also a satisfactory explanation for the failure to produce that evidence at an earlier time."]; Glade v. Glade (1995) 38 Cal.App.4th 1441 ["The party seeking reconsideration must provide not just new evidence or different facts, but a satisfactory explanation for the failure to produce it at an earlier time."].)

New circumstances can be shown by evidence that the court failed to consider a timely-filed

memorandum of points and authorities in its prior ruling. (Johnston v. Corrigan (2005) 127 Cal.App.4th 553, 556.)

DISCUSSION

Plaintiff

asks the Court (1) to reconsider its previous ruling on Goodie's Demurrer; (2) to grant Plaintiff leave to file a Fifth Amended Complaint ("5AC"); (3) to vacate or modify Goodie's dismissal; and (4) to grant such other relief as the Court deems just and proper.

Plaintiff

bases his motion on his proposed 5AC, attached to the motion as Exhibit A. Plaintiff argues that the proposed 5AC materially differs from prior pleadings, cures the defects in the previous pleadings, does not trigger the sham pleading doctrine, and the interests of justice requires filing of the 5AC.

Plaintiff

does not base his motion for reconsideration on

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SUMMARY: Plaintiff Jerome

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Moreover, there is a strict requirement of diligence, which means that the moving party must present a satisfactory explanation for failing to provide the evidence or different facts earlier.¿ (Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 690.)¿ The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at trial.¿ (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212-213; Mink v. Superior Court (1992) 2 Cal.App.4th 1338 [" '[T]he party seeking reconsideration must provide not only new evidence but also a satisfactory explanation for the failure to produce that evidence at an earlier time.' "]; Glade v. Glade (1995)

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DISCUSSION

Plaintiff

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Plaintiff

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Plaintiff

does not base his motion for reconsideration on new or different facts, circumstances, or law as required by section 1008. Rather, Plaintiff asks the Court to apply the demurrer standard to his proposed 5AC through this motion and allow the 5AC to be filed. This is not a proper basis for a motion for reconsideration. Plaintiff has failed to present any grounds under section 1008 of the Code of Civil Procedure to reconsider the Court's prior ruling.

Conclusion

Plaintiff

Jerome Gardner's Motion for Reconsideration is denied.

Date: 08/11/2026 _____

William E. Weinberger

Judge, Los Angeles Superior Courtation on new or different facts, circumstances, or law as required by section 1008. Rather, Plaintiff asks the Court to apply the demurrer standard to his proposed 5AC through this motion and allow the 5AC to be filed. This is not a proper basis for a motion for reconsideration. Plaintiff has failed to present any grounds under section 1008 of the Code of Civil Procedure to reconsider the Court's prior ruling.

Conclusion

Plaintiff

Jerome Gardner's Motion for Reconsideration is denied.

Date: 08/11/2026 _____

William E. Weinberger

Judge, Los Angeles Superior Court